

Borough Council Minutes  
New Providence, New Jersey  
July 9, 2012

The regular meeting of the Borough Council of the Borough of New Providence, County of Union and State of New Jersey was held on Monday, July 9 at 7:00 PM at the Municipal Center. Mayor J. Brooke Hern called the meeting to order.

Present on Roll Call: Mayor Hern, Council President Gennaro, Councilman Lesnewich, Councilman Galluccio, Councilman Cucco, Councilman Muñoz, Councilman Robinson

Absent: None

Also Present: Borough Clerk Barry, Administrator Marvin, Deputy Borough Clerk Gelormini

**PLEDGE OF ALLEGIANCE:**

Mayor Hern led the Pledge of Allegiance.

**PUBLIC NOTICE:**

Mayor Hern stated this is a public meeting of the Borough Council of the Borough of New Providence, County of Union and State of New Jersey. Adequate notice of this meeting has been given in accordance with P.L. 1975, Chapter 231, in that an annual notice or revision was made in conformance with Section 13 of the Act.

**APPROVAL OF MINUTES:**

Councilman Cucco moved the minutes of the June 11, 2012 Council Meeting be approved as submitted, seconded by Councilman Galluccio and unanimously approved.

Councilman Cucco moved the minutes of the June 25, 2012 Council Meeting be approved as submitted, seconded by Councilman Lesnewich and unanimously approved. Councilman Galluccio and Councilman Muñoz abstained from voting on the minutes since they were not absent at the June 25<sup>th</sup> meeting.

**CORRESPONDENCE:**

1. Groundwater & Environmental Services, Inc., June 13, 2012. Re: Biennial Certification Monitoring Report, 50 South Street. No action required.
2. Chatham Township, June 15, 2012. Re: Land Development Ordinance. No action required.

3. Chatham Township, June 15, 2012. Re: Steep Slope Ordinance. No action required.
4. Union County Utilities Authority, June 21, 2012. Re: Union County-Generated Solid Waste Final Disposal Facility. Councilman Robinson questioned the new site for solid waste disposal. Council President Gennaro described the reasons for the switch explaining the old facility filed for bankruptcy.
5. State of New Jersey, Department of Transportation, June 26, 2012. Re: Federal Highway Administration Presentation. No action required.
6. County of Union Board of Chosen Freeholders, June 28, 2012. Re: Greening Union County 2012. No action required.
7. County of Union Board of Chosen Freeholders, June 28, 2012. Re: 2012 Kids Recreation Trust Grant. No action required.
8. Union County Solid Waste Advisory Council, June 29, 2012. Re: Amendment to the Union County District Solid Waste Management Plan. Council discussed both communications from the Union County Solid Waste Advisory Council regarding bulk waste being brought to a new facility.
9. Comcast Cable Communications, LLC., June 29, 2012. Re: Determination of Effective Competition in 22 Berkeley Heights, N.J.- Area Franchise Areas. No action required.
10. Joseph and Natalie Schickel, July 2, 2012. Re: Zoning Board of Adjustment Public Hearing, Berkeley Heights, 16 Lee Ln. No action required.
11. 755 Central Avenue, LLC, July 2, 2012. Re: Zoning Board of Adjustment Public Hearing, 755 Central Ave. No action required.
12. State of New Jersey, Department of Environmental Protection, July 2, 2012. Re: Open Space Acquisition Matching Grant. Council discussed advantages and disadvantages of acquiring more open space. They discussed the current list of properties held for conservation purposes and also discussed other possible sites for acquisition.
13. Public Service Electric And Gas, July 3, 2012. Re: Notice of Filing for Approval of Changes in its Electric RGGI Recovery Charges and its Gas RGGI Recovery Charges. No action required.

## **COUNCIL BUSINESS:**

### **Administration:**

1. Resolution 2012-201      "Resolution Calling for Restoration of Energy Receipts Funding to Municipalities"

Council President Gennaro presented Resolution 2012-201 calling for Restoration of Energy Receipts funding to Municipalities. He explained the Borough, along with the other Municipalities, has lost out on millions of dollars since the State took over the collection of energy taxes. He explained the State is supposed to reimburse the municipalities, but the amounts have become decreasingly smaller over time. He stated this Resolution asks for the collection of these taxes to fall back into the hands of the Municipalities.

2. Resolution 2012-202      “Resolution Authorizing The Borough Of New Providence To Enter Into A Cooperative Pricing Agreement With The Somerset County Cooperative Pricing System”

Council President Gennaro presented Resolution 2012-302 authorizing the Borough of New Providence to enter into a Cooperative Pricing Agreement with the Somerset County Cooperative Pricing System. He stated some of the benefits of joining will be lower pricing and in some cases eliminating the need for public bidding.

#### Engineering:

1. Resolution 2012-203      “Resolution Accepting The Proposal Of Maser Consulting P.A. For Professional Services For Clearwater Detention Dam Safety Inspection”

Council President Gennaro presented Resolution 2012-203 accepting the proposal of Maser Consulting P.A. for professional services for Clearwater Detention Dam Safety Inspection. He stated the NJ Department of Environmental Protection requires dams to be inspected. Council discussed the estimate of \$4,000 from Maser is the same price that was charged in the past by Hatch Mott MacDonald.

#### Finance:

1. Resolution 2012-204      “Resolution Authorizing Payment Of The Attached Bills Payable List, In The Amount Of \$ 3,164,857.43”

Council President Gennaro presented Resolution 2012-204 authorizing payment of the attached Bills Payable List in the amount of \$3,164,857.43. He stated, of this total, approximately \$2,969,000 is for payment to the Board of Education for school taxes.

2. Resolution 2012-205      “Resolution Providing For The Insertion Of Any Special Item Of Revenue In The 2012 Budget Pursuant Of N.J.S. 40a:4-87 Chapter 159, P.L. 1948”

Council President Gennaro presented Resolution 2012-205 providing for the insertion of any special item of revenue in the 2012 budget pursuant of N.J.S. 40a:4-87 Chapter 159, P.L. 1948. He stated the VFW Beacon Hill Post donated

\$1,600.00 to improve the faded sign in Veteran's Park. Councilman Cucco stated VFW Post 190 is merging with Berkeley Heights Post 6259.

3. Resolution 2012-206 "Resolution Providing For The Insertion Of Any Special Item Of Revenue In The 2012 Budget Pursuant Of N.J.S. 40a:4-87 Chapter 159, P.L. 1948"

Council President Gennaro presented Resolution 2012-206 providing for the insertion of any special item of revenue in the 2012 budget pursuant of N.J.S. 40a:4-87 Chapter 159, P.L. 1948. He stated the NJ Alcohol Education Rehabilitation & Enforcement Fund issued the Borough a check for \$323.78 for DWI enforcement.

#### Board of Health:

1. Resolution 2012-207 "Resolution Authorizing Agreement Between The Borough Of New Providence And Animal Control Solutions, In The Amount Of \$13,300.00"

Councilman Robinson presented Resolution 2012-207 authorizing agreement between the Borough of New Providence and Animal Control Solutions, in the amount of \$13,300.00. He stated the Borough entered into a shared services agreement with Summit and Westfield which will allow more services with no additional cost. Councilman Cucco asked for copies of the monthly reports.

#### Personnel:

1. Resolution 2012-208 "Resolution Accepting Written Employment Resignation From Susan Peterson, Part Time Program Coordinator For The Borough Of New Providence Community Activities Department"

Councilman Lesnewich presented Resolution 2012-208 accepting written employment resignation from Susan Peterson, Part Time Program Coordinator for the Borough of New Providence Community Activities Department. He stated Susan was with the Borough for 5 years and her resignation was effective June 30<sup>th</sup>.

2. Resolution 2012-209 "Resolution Approving Memorandum Of Agreement Between The Borough Of New Providence And Teamsters Local 469, For The Period January 1, 2012 Through December 31, 2014"

Councilman Lesnewich presented Resolution 2012-209 approving Memorandum of Agreement between the Borough of New Providence and Teamsters Local 469 for the period January 1, 2012 through December 31, 2014. Council President Gennaro explained the increase percentages for each year.

3. Resolution 2012-210                      “Resolution Approving Memorandum Of Agreement Between The Borough Of New Providence And New Providence Patrolmen’s And Sergeant’s Associations Of PBA Local 132, For The Period January 1, 2011 Through December 31, 2014”

Councilman Lesnewich presented Resolution 2012-210 approving Memorandum of Agreement between the Borough of New Providence and New Providence Patrolmen’s and Sergeant’s Associations of PBA Local 132, for the period January 1, 2011 through December 31, 2014. Council President Gennaro and Councilman Cucco explained the change in the contract work hours. Councilman Robinson thanked Gennaro and Cucco for their negotiation efforts.

4. Resolution 2012-211                      “Salary Resolution”

Councilman Lesnewich presented Resolution 2012-211 approving salaries for non-union employees. He stated increases are effective July 3<sup>rd</sup> with the exception of 4 employees whose salaries will be effective January 1<sup>st</sup>.

#### Public Safety:

1. Raffle Request                              RA 943 NPHS Bandwagon  
                                                            RA 944 NPHS Bandwagon

Mayor Hern presented raffle requests RA 943 and RA944 for NPHS Bandwagon.

#### Public Works:

1. Resolution 2012-212                      “Resolution Approving Purchase Order #44154 For G. P. Jager & Associates, Inc., In The Amount Of \$6,009.86”

Councilman Cucco presented Resolution 2012-212 approving purchase order #44154 for G.P. Jager & Associates, Inc. in the amount of \$6,009.86. He stated this is for the purchase of a replacement pump for the Wastewater Treatment Plant.

### **COUNCIL COMMITTEE REPORTS.**

Councilman Robinson – reported on the following:

1. Utility Bills - Reverse auction for natural gas. Administrator Marvin looking into more details.
2. Recreation Capital Improvement Committee – Marvin met with members of the Morris Union Jointure Commission regarding the Hillview Field improvement proposal. He reported it was a positive meeting and members of the Jointure were very accepting of the proposal.

3. Centennial Park 10 Year Anniversary Celebration – thanked speakers: Gennaro, Morgan, Congressman Lance, and Assembly Woman Muñoz. He also thanked the DID and NPBPA for sponsoring the event, and thanked the committees, food vendors, volunteers and residents for all being part of the event.

Councilman Muñoz – reported on the following:

1. July 3<sup>rd</sup> Independence Day Celebration and Centennial Park Celebration – attended both events and greatly enjoyed both with his family.

Council President Gennaro – reported on the following:

1. Centennial Park Celebration – thanked employees and the Business and Professional Association for their efforts. He also thanked Councilman Robinson for spearheading the event.
2. July 3<sup>rd</sup> Independence Day Celebration – thanked volunteers and sponsors.
3. Feedback on Borough Services – wants to create a way for residents to give feedback regarding their experience dealing with boards and departments in the Borough.
4. Contract Negotiations – thanked Teamsters, PBA, and non union employees for patience during negotiations.

Councilman Cucco – reported on the following:

1. Hire Public Works Employee - Asked for authorization to post assistant foreman position in the Public Works Department. He stated since one of the public works employees passed away last year they have not hired someone to replace him and have been understaffed.
2. July 3<sup>rd</sup> Independence Day Celebration and Centennial Park Celebration – thanked the Public Works Department for helping with both events.
3. Communication between council - Discussed with members of council having more communication amongst members in person rather than just through email.

Councilman Galluccio – reported on the following:

1. Planning Board meeting to be held July 10<sup>th</sup> – 2 applications on the agenda.
2. Centennial Park Celebration– thanked Gennaro and Robinson, as well as Jimmy Vardas from the prestige diner, and the Tim Gillis Band. He also encouraged residents to look at the new plaque in Centennial Park and commended the DPW for installing the plaque.
3. July 3<sup>rd</sup> Independence Day Celebration – enjoyed the fireworks display.
4. Attended retirement party for Dr. Coleman from the Morris Union Jointure Commission – wished him well in his future endeavors.
5. Feedback from Residents – agreed with Council President Gennaro that a mechanism for feedback such as a survey is a good idea.

Councilman Lesnewich – reported on the following:

1. Centennial Park and Veteran's Park – commended DPW and volunteers for their work with the parks.
2. July 3<sup>rd</sup> Independence Day Celebration.

Mayor Hern - reported on the following:

1. Centennial Park Celebration – thanked all who volunteered.

2. July 3<sup>rd</sup> Independence Day Celebration – thanked all volunteers, local businesses, and importantly for Investors Savings Bank for sponsoring the fireworks.
3. App for Smartphone – looking into an app that will allow important updates from the Borough to be sent directly to residents through their smart phones and other wireless devices.

## BOROUGH ADMINISTRATOR'S REPORT.

Administrator Marvin reported on the following:

1. Building Department inspections and permits from the last month.
2. 124 South Street – Boy Scouts currently working with Jim Johnston to clean up the area.
3. Tennis Courts – new sidewalks and canopy have been installed. Residents can now register online through community pass to reserve a court.
4. 100 children attended the recreation summer camp program last week.
5. Mold remediation at the Senior Center complete.
6. Commended the Rescue Squad and Police Department for delivering a healthy baby girl that morning at 6am.
7. Morris Union Jointure meeting – met with members of the Jointure regarding the Hillview Field proposal, specifically regarding parking on Central Avenue near Hillview Field and use of the parking lots at the school.

**PUBLIC COMMENTS:**

This is an opportunity for any member of the public to be heard about issues that are not separate topics, scheduled for public hearings tonight. To help facilitate an orderly meeting, and to permit all to be heard, speakers are asked to limit their comments to three (3) minutes, and may only speak once on any one topic.

Mayor Hern opened the meeting for public comments.

There being no one wishing to speak this portion of the meeting was closed.

## FORMAL ACTION

CONSENT AGENDA (routine items that may be passed by a single roll call vote; any Council member may call for a separate discussion or vote on any item)

Councilman Lesnewich moved passage of items 1 -13 on the consent agenda, seconded by Councilman Cucco and on Roll Call: Councilman Lesnewich, Councilman Galluccio, Councilman Cucco, Council President Gennaro, Councilman Muñoz, and Councilman Robinson voted “aye”. Carried on Roll Call.

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|-------------------|------------------------------------------------|
| 1. Raffle Request | RA 943 NPHS Bandwagon<br>RA 944 NPHS Bandwagon |
|-------------------|------------------------------------------------|

2. Resolution 2012-201 "Resolution Calling for Restoration of Energy Receipts Funding to Municipalities"
3. Resolution 2012-202 "Resolution Authorizing The Borough Of New Providence To Enter Into A Cooperative Pricing Agreement With The Somerset County Cooperative Pricing System"
4. Resolution 2012-203 "Resolution Accepting The Proposal Of Maser Consulting P.A. For Professional Services For Clearwater Detention Dam Safety Inspection"
5. Resolution 2012-204 "Resolution Authorizing Payment Of The Attached Bills Payable List, In The Amount Of \$ 3,164,857.43"
6. Resolution 2012-205 "Resolution Providing For The Insertion Of Any Special Item Of Revenue In The 2012 Budget Pursuant Of N.J.S. 40a:4-87 Chapter 159, P.L. 1948"
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8. Resolution 2012-207 "Resolution Authorizing Agreement Between The Borough Of New Providence And Animal Control Solutions, In The Amount Of \$13,300.00"
9. Resolution 2012-208 "Resolution Accepting Written Employment Resignation From Susan Peterson, Part Time Program Coordinator For The Borough Of New Providence Community Activities Department"
10. Resolution 2012-209 "Resolution Approving Memorandum Of Agreement Between The Borough Of New Providence And Local 469, For The Period January 1, 2012 Through December 31, 2014"
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12. Resolution 2012-211 "Salary Resolution"
13. Resolution 2012-212 "Resolution Approving Purchase Order #44154 For G. P. Jager & Associates, Inc., In The Amount Of \$6,009.86"



**ADJOURNMENT.**

There being no further business, on motion by Councilman Cucco, seconded by Councilman Galluccio the meeting was adjourned.

Respectfully submitted,

Wendi B. Barry, Borough Clerk

These minutes have not yet been officially approved.

*Minutes approved at the Borough Council meeting of 07/23/2012 as submitted.*